

such trustee, or tenant for life, or their assets. But when, by the permission of the trustee, the tenant for life has [*371] been in the full enjoyment of the rents and * profits without deduction for renewals, though the trustee is primarily answerable to the remainderman, yet the tenant for life, who has had the actual pernancy, must to that extent make it good to the trustee (a).

9. **Of fines on underleases.** — And where the leaseholds were annually renewable for twenty-one years, and the custom had been for the lessee annually to grant underleases for twenty years, the tenant for life, as bound to pay the fines to the lessor out of the annual rents and profits, was declared entitled to the fines paid annually by the underlessees (b).

How fines to be levied where no direction by the settlor. — *Secondly.* It often happens that renewable leaseholds are devised to trustees with a direction, either expressed or implied, to keep the leases continually renewed, but *without any declaration of intention* out of what fund the settlor meant the expenses to be levied.

1. **Where paid by tenant for life or remainderman.** — Where this is the case, the tenant for life and remainderman may possibly agree to contribute towards the fine out of their own pockets, at the time of the renewal; or if the tenant for life and remainderman cannot agree to *join* in raising the fine, one of them may be willing to advance the whole amount *pro tempore* out of his own pocket, and then an apportionment on the principles adopted by the Court may be compelled between the tenant for life's estate and the remainderman at the tenant for life's decease, and either party advancing the fine will have a *lien* on the renewed lease for the amount expended beyond his proportional part. If the tenant for life and remainderman will neither jointly, nor will either of them singly advance the fine, then it is said the

(a) Lord Montfort v. Lord Cadogan, *ubi supra*; Townley v. Bond, 2 Conn. & Laws. 403, 406, *per* Sir E. Sugden; and see Wadley v. Wadley,

2 Coll. 11; [Brigstocke v. Brigstocke, 8 Ch. D. 357.]

(b) Milles v. Milles, 6 Ves. 761; and see Earl Cowley v. Wellesley, 1 L. R. Eq. 656; S. C. 35 Beav. 640.